



Australian Government

Department of Foreign Affairs and Trade

PMSB-25007-C71

REQUEST FOR TENDER (RFT)

PART 1 – TERMS AND CONDITIONS

**FOR THE PROVISION OF HEAD WORKS CONTACTOR FOR THE REFURBISHMENT OF
THE AUSTRALIAN HIGH COMMISSION STAFF RESIDENTIAL COMPOUND
KONEDOBU, PORT MORESBY, PAPUA NEW GUINEA**

The timetable below provides the key dates related to this RFT.

AusTender Publish Date	26 June 2026
Closing Time	13 August 2026 at 1700hrs Canberra Local Time
Deadline for Tenderer Registration to attend Industry Briefing and Site Visit	6 July 2026 at 1700hrs Canberra Local Time
Industry Briefing	7 July 2026 at 1300hrs Canberra Local Time (online via Microsoft Teams)
Site Visit	15 July 2026 Time to be Confirmed- as per clause 2.2.1(b)
Deadline for Questions	6 August 2026 at 1700hrs Canberra Local Time
Contact Email	aopoprojects@dfat.gov.au

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PART 1. TERMS AND CONDITIONS

1. GLOSSARY OF TERMS

Term	Definition
ACT	means Australian Capital Territory
Addendum/Addenda	means a notice given in accordance with clause 3.1
AusTender Terms of Use	means the terms of use set out on AusTender and any applicable instructions, processes, procedures and recommendations as advised on AusTender
Apprentice	also known as a trainee or an Australian Apprentice) means a person who is: - employed under a Training Contract that has been registered with, and validated by, their State/Territory training authority; - undertaking paid work and structured training which comprises both on and off the job training; - undertaking a negotiated training program that involves obtaining a nationally recognised qualification; and - either directly employed by the supplier or sub-contractors, or indirectly employed through a Group Training Organisation to work on the Services
Australian Skills Guarantee Procurement Connected Policy	means the policy available on the Australian Skills Guarantee website available at: https://www.dewr.gov.au/australian-skills-guarantee , as amended from time to time
Australian Skills Guarantee Targets	A percentage of labour hours to be undertaken by Apprentices, Learning Workers and Women based on the type and size of Projects.
Business Day	means any day that is not a Saturday, Sunday, public holiday or bank holiday in the ACT
Closing Time	means the closing time and date for lodgement of Tenders listed on the cover page of this RFT
Commonwealth Entity	has the same meaning as in the <i>Public Governance, Performance and Accountability Act 2013</i> (Cth)
Commonwealth Personnel	means the Commonwealth of Australia's employees, officers, agents, or contractors
Conditions for Participation	means the mandatory conditions (if any) specified at clause 3.11 that the Tenderer must comply with in order to participate in this RFT
Contact Email	means the central contact point for all enquiries regarding this RFT listed on the cover page of this RFT

Term	Definition
Contract	means the terms and conditions documentation that the Department may enter into with any Successful Tenderer
Contractor	means the Successful Tenderer
Contractors Escalation Representative	means the Escalation Representative, nominated by the Contractor in Part 3 Tender response Form 9 (9.4 Resourcing (f))
Contractor Personnel	means the Contractor's employees, officers, agents, contractors or Subcontractors (including their respective personnel) and Specified Personnel of the Contractor
Deadline for Questions	means the deadline for Tenderers submitting questions in relation to the RFT, as specified on the cover page of this RFT
Department or DFAT	means the Commonwealth of Australia, represented by the Department of Foreign Affairs and Trade
DFAT Consolidated List	means a list of all persons and entities maintained by the Department who are subject to targeted financial sanctions or travel bans under Australian sanctions laws located on DFAT's website: https://dfat.gov.au/international-relations/security/sanctions/Pages/consolidated-list.aspx
DFAT Contract Manager	means the DFAT Officer responsible for the management of the Contract specified in Attachment A Draft Contract (Formal Instrument of Agreement)
Evaluation Criteria	means the criteria against which Tenders will be assessed, as set out in clause 4.2 of this RFT
Former DFAT Employee	means a person who was previously employed by the Department, whose employment ceased within the last 9 months and who was substantially involved in the design, preparation, appraisal, review, and or daily management of this RFT and/or a contract for services similar to the Requirements
Indigenous Enterprise	means an organisation that is 50 per cent or more Indigenous owned that is operating a business
Indigenous Procurement Policy	means the policy of that name, as amended from time to time, available on the Indigenous procurement website (http://www.niaa.gov.au/indigenous-affairs/economic-development/indigenous-procurement-policy-ipp)

Term	Definition
Labour Hours	means the number of hours a Worker worked on the Services. This may include: a. hours worked on-site; b. hours worked off-site that deliver inputs to the Services; or c. formal off-site training and education, provided that in circumstances where off-site hours are to be split between multiple projects, the sum of the reported hours must not be greater than the total hours the person worked off-site.
Minimum Content and Format Requirements	means the minimum mandatory content and format requirements that a Tender must meet in order to be evaluated, as set out in clause 3.12
Payment Times Procurement Connected Policy	Payment Times Procurement Connected Policy Treasury.gov.au , applies to large businesses (annual income of over \$100 million) undertaking, but– does not apply to PNG businesses or goods procured in PNG.
Preferred Tenderer	is as defined in clause 4.9.1
Registered Tenderers	means an entity that has completed and returned to the Contact Email a copy of the Tender Registration Document at Attachment D to this RFT.
Request for Tender or RFT	means this document and including all attachments, addendum and schedules
Requirements	means the goods and/or services to be provided under the terms and conditions of the Contract required by the Department more particularly described in the Scope of Requirement
Satisfactory	means meets the conditions set out in Part 6.b of the Shadow Economy Procurement Connected Policy or, if the circumstances in Part 6.c of the Shadow Economy Procurement Connected Policy apply, the conditions set out in Part 8.b of the Shadow Economy Procurement Connected Policy
Scope of Requirement or SOR	means the detailed Requirements of this RFT set out in Part 2
Shadow Economy Procurement Connected Policy	means the <i>Shadow Economy – increasing the integrity of government procurement: Procurement connected policy guidelines</i> October 2024 available at https://treasury.gov.au/publication/p2019-t369466 .
Specified Personnel	means the specified Contractor Personnel detailed in Schedule 1 (Contract Details) of the Contract
Standard	means a document approved by a recognised body such as Standards Australia, the International Organisation for Standardisation, the International Electrotechnical Commission or the International

Term	Definition
	Telecommunication Union, that provides, for common and repeated use, rules, guidelines or characteristics for goods or services, or related processes and production methods, with which compliance is not mandatory, unless the goods or services are subject to regulation by government
Statement of Compliance	has the meaning given to it in paragraph 5.1.a in TRF 5
Statement of Tax Record	means a statement of tax record issued by the Australian Taxation Office following an application made in accordance with the process set out at https://www.ato.gov.au/Business/Bus/Statement-of-tax-record
Subcontractor	means any person or entity, other than DFAT, that for the purposes of the Contract, furnishes goods or services to the Contractor or indirectly to the Contractor through another person or entity
Successful Tenderer	means the Tenderer selected to enter into a Contract
Tender	means a response submitted to this RFT, substantially in the form of the Tender Response Forms (TRF)
Tenderer	means an entity who submits a Tender
Tender Response Form (TRF)	means the form/s that must be completed and/or executed by the Tenderer, which forms the Tenderer's Tender Response
Tender Validity Period	means the period that the Tenderer's offer remains open for acceptance as specified in clause 3.2.5 of this RFT
Training Contract	means a legally binding agreement between an employer and Apprentice administered under State/Territory legislation
Valid	means valid in accordance with Part 7.e of the Shadow Economy Procurement Connected Policy
Women	means people who, regardless of their sex assigned at birth, identify as a woman irrespective of age
Work Health and Safety	means the legislated requirements under the <i>Work Health and Safety Act 2011</i> (Cth)
Worker or Employee	means a person who is paid to work for an organisation for more than one hour in a week
World Bank List or similar List	means a list of organisations maintained by the World Bank in its as and when updated "Listing of Ineligible Firms and Individuals" posted at: https://www.worldbank.org/en/projects-operations/procurement/debarred-firms or a similar list of organisations maintained by other development donors

2. INTRODUCTION

2.1. Invitation to Tender

- 2.1.1. The Commonwealth of Australia (**Commonwealth**) as represented by the Department of Foreign Affairs and Trade (the **Department** or **DFAT**) invites interested parties (**Tenderers**) to submit tenders (**Tenders**) for the provision of Head Works Contractor (HWC) for the Refurbishment of the Australian High Commission Staff Residential Compound (SRC) Konedobu, Port Moresby, Papua New Guinea (PNG) (the Project) in accordance with this Request for Tender (RFT).
- 2.1.2. An overview of the **Requirements is set out in Part 2** of this RFT, and the draft Contract is an Attachment released with this RFT.
- 2.1.3. This RFT comprises tender conditions, the appendices to these tender conditions and the Tender Response Forms (TRF). The TRFs are to be completed by the Tenderer and form the Tenderer's Tender.
- 2.1.4. Any resultant Contract may require the supply of the Requirements to any Commonwealth Entity as advised from time to time.

2.2. Industry Briefing

- 2.2.1. The Department proposes to conduct an industry briefing and site visit for this RFT, as follows:
- a. an industry briefing through an online Microsoft Teams Meeting on 7th July 2026; and
 - b. an in-person site visit at the Konedobu Compound, Port Moresby, PNG on 15 July 2026.
- 2.2.2. Attendance at the industry briefing and site visit will be limited to Registered Tenderers.
- 2.2.3. The Department will notify Registered Tenderers of the details of the industry briefing and site visit, including:
- a. the scheduled date, time and meeting invite and link for the industry briefing; and
 - b. the scheduled date, time, location, and logistical arrangements for the site visit.
- 2.2.4. For the site visit, the maximum number of Tenderer personnel (whether employees, subcontractors, consultants or otherwise) who may attend the site visit will be a maximum number of three (3) representatives per Tenderer.
- 2.2.5. Registered Tenderers should, using the Tender Registration Form at Attachment D:
- a. indicate if they intend to attend the in-person site visit;
 - b. provide written details of the Tenderer; and
 - c. provide full names, position, company, contact details, and vehicle registration information for all Tenderer personnel proposed to attend the site visit, which must not exceed the maximum number permitted under clause 2.2.4 above.
- 2.2.6. If the Tenderer wishes to attend the industry briefing and site visit, the Tenderer must provide the details required under clause 2.2.5, to the Contact Email on the front page of this RFT by 05:00 PM Canberra Local Time (AEST), Monday, 6 July

2026 (Deadline for Tenderer Registration for attendance at industry briefing and site visit).

- 2.2.7. Tenderers are responsible for all arrangements and costs associated with their attendance at the industry briefing and the site visit as per clause 3.28 of this RFT. Tenderers should note that this includes costs of arranging travel, accommodation and visas for attending the site visit. Tenderers are also responsible for identifying and obtaining any visas that may be required to enter Papua New Guinea in sufficient time to attend any site visits held in person in Papua New Guinea.
- 2.2.8. Attendance at the industry briefing and site visit is not mandatory, however, it is recommended, as it will assist potential Tenderers in better understanding the Requirements and in preparing submissions that address the evaluation criteria.
- 2.2.9. The industry briefing will be recorded. Copies of the industry briefing recording, presentations and responses to questions provided at the industry briefing will be provided to Tenderers through AusTender following the industry briefing.
- 2.2.10. Individual industry briefings and site visits will not be provided. All industry briefing and site visits will be conducted for the purpose of providing background information only. The Tenderer must not in any way rely upon the industry briefing, site visit, or any industry briefing materials provided, for the purposes of preparing, amending or negotiating its Tender or entry into any contract with the Department.
- 2.2.11. The Tenderer is **not** permitted to take photographs or other electronic recordings of any industry briefing or site visit (including any presentation or site locations). The Tenderer may request photos of certain locations or aspects during the site visit. The Department, may at its discretion, provide photos or additional information to all Tenderers.
- 2.2.12. The Department may (in its absolute discretion):
 - a. further limit or restrict the number of Tenderer personnel; or
 - b. exclude any or all Tenderer personnel from,
 attending the industry briefing or site visit for any reason, including if the Tenderer:
 - c. exceeds the maximum number of Tenderer personnel specified in clause 2.2.4; or
 - d. does not register their attendance as required under clause 2.2.5; or
 - e. substitutes or replaces Tenderer personnel after the time and date specified in clause 2.2.6.
- 2.2.13. Any information provided at the industry briefing and site visit will be made available to all Tenderers, subject to the terms and conditions of this RFT.
- 2.2.14. Without limiting any other provision of this RFT:
 - a. subject to the Commonwealth Procurement Rules, the Department is not obliged to respond to any or all questions, enquiries or other matters notified during the industry briefing or site visit; and
 - b. the Department may (in its absolute discretion) publish or issue addenda under clause 3.1 to address any matters arising out of or in connection with the industry briefing and site visit.

2.3. Project Management Contract Administrator (PMCA)

- 2.3.1. The Department will engage a PMCA service provider to support the delivery of the Project. The PMCA will report to DFAT and will be responsible for the day-to-day project management, construction management, and contract administration for this Project.
- 2.3.2. For the purpose of avoiding confusion, this RFT is not for the engagement of the PMCA service provider

2.4. Contract

- 2.4.1. The Department intends to enter into a Contract with the Successful Tenderer substantially in the form of the attached draft Contract. The Contract will govern the legal relationship between the Department and any Successful Tenderer.
- 2.4.2. The Department proposes that any Contract arising from this RFT will be milestone based for the purposes of tender over approximate time period of 4.5 years (Practical Completion (PC) + 12 months Defects Liability Period (DLP) of the last residence completed). Noting that based off the tender responses and the milestone-based Contract, this is an estimate only.
- 2.4.3. The Contract with the successful Tenderer (if any), will not be executed until Parliamentary Approval has been obtained which is expected to be tabled to Parliament in June/July 2026.

2.5. Request for Tender

- 2.5.1. This RFT is not a Contract between the Department and the Tenderer, nor an offer to Contract. Nothing in this RFT, any Tender, or any conduct or statement made before or after the issue of this RFT is to be construed so as to give rise to any contractual obligations, express or implied, or any obligations in equity.
- 2.5.2. There is no binding agreement, express or implied between the Department and any Tenderer in relation to the RFT or the Requirements until a written Contract is executed by the Department and a Tenderer. The final Contract will contain the entire agreement between the Department and the Successful Tenderer.
- 2.5.3. Clauses 2.5 does not apply to:
 - a. the Due Diligence Information Deed Poll of Confidentiality;
 - b. the executed Tender Declaration in the form at Part 3 - Tenderer Response Schedules; and
 - c. any other deed or contractual arrangement entered into by the Tenderer, as required by DFAT from time to time

2.6. Governing Law

- 2.6.1. This RFT is to be construed in accordance with, and any matter related to it is to be governed by, the law of the Australian Capital Territory. The courts of that Territory have non-exclusive jurisdiction to decide any matter related to this RFT.

3. CONDITIONS OF TENDER

3.1. AusTender and Addenda

- 3.1.1. This RFT is available on the AusTender website at <https://www.tenders.gov.au>. Tenderers should regularly check the AusTender website for any updates or addenda to this RFT.
- 3.1.2. AusTender is the Australian Government's procurement information system. Access to and use of AusTender is subject to terms and conditions. In participating in this RFT process, Tenderers must comply with those terms and conditions and any applicable instructions, processes, procedures and recommendations as advised on AusTender at <https://www.tenders.gov.au/infolinks/termsfuse>.
- 3.1.3. Tenders must be lodged on or before the Closing Time.
- 3.1.4. The Department may extend the Closing Time in its sole discretion and will issue an Addendum via AusTender notifying any decision to extend.
- 3.1.5. In the event the Department elects to vary, suspend or supplement this RFT or change the conditions of tender, it will issue an Addenda to the RFT posted on AusTender.
- 3.1.6. Tenderers are required to log in to AusTender and collect Addenda as notified.
- 3.1.7. The Department will accept no responsibility if a Tenderer fails to become aware of any Addendum notice which would have been apparent from a visit to the AusTender page for this RFT.
- 3.1.8. If a Tenderer has obtained tender documentation other than from AusTender, they must visit AusTender, register as a user and download the tender documentation for this RFT.
- 3.1.9. Upon issue, each Addendum forms part of this RFT.
- 3.1.10. The Department will not respond to any request for clarification in relation to the RFT from a Tenderer received after the Deadline for Questions.
- 3.1.11. Tenderers should acknowledge receipt of all Addenda provided in the Tenderer's Response Form (TRF) 3: Addenda - Acknowledgement.

3.2. Electronic Lodgement and Closing Time

- 3.2.1. Tenders must be lodged electronically via AusTender before the Closing Time and in accordance with the Tender lodgement procedures set out in this RFT and on AusTender.
- 3.2.2. The Closing Time will also be displayed in the relevant AusTender webpage together with a countdown clock that displays in real time the amount of time left until the Closing Time. For the purposes of determining whether a Tender response has been lodged before the Closing Time, the countdown clock will be conclusive. For more information please see the AusTender Terms of Use.
- 3.2.3. Where there is any inconsistency between the Tender lodgement procedures set out on AusTender and those set out in this RFT, this RFT will prevail.
- 3.2.4. Tenders lodged by any other means, including by hand, facsimile or email, will not be considered.

3.2.5. Tenders must remain open for acceptance (valid) for a period of at least one hundred and eighty (180) days from the Closing Time.

3.2.6. The Department reserves the right to extend the Tender Validity Period.

3.3. Access to Due Diligence Information and Designs

3.3.1. Tenderers should note that Attachment C of this RFT contains a list of documents that comprise the design information for the Project. The design information itself is not included in this published RFT document as it is classified as DFAT Confidential Information

3.3.2. For reasons of security and confidentiality, the due diligence and design information will not be made available to a Tenderer until the Tenderer has met the requirements set out in the Due Diligence Deed Poll at Attachment E to this RFT (Confidentiality Deed Poll).

3.3.3. Tenderers must complete and return the Confidentiality Deed Poll, located at Attachment E of this RFT, to the Contact Email for this RFT on the front page. The completed Confidentiality Deed Poll must be received by DFAT in a timely manner for it to be processed. Any Confidentiality Deed Poll received less than 5 Business days ahead of the Closing Time may not be processed by the Department.

3.3.4. Upon receipt of a Confidentiality Deed Poll, DFAT will review it to ensure that it has been correctly completed and properly executed. If DFAT determines in its sole and absolute discretion that the Confidentiality Deed Poll that has been submitted by a Tenderer does not satisfy all the requirements, DFAT may refuse to provide access to the due diligence or design information in Attachment C. DFAT may notify a Tenderer if DFAT considers that its Confidentiality Deed Poll does not comply with requirements, to give the Tenderer an opportunity to correct any submission errors or provide evidence for DFAT's consideration. This includes any Confidentiality Deed Poll that is incorrectly completed or improperly executed, which will be returned to the Tenderer for correction and resubmission.

3.3.5. Any resubmitted Confidentiality Deed Poll must be received by DFAT by the date specified by DFAT in its correspondence returning the Confidentiality Deed Poll. Any Confidentiality Deed Poll received after the time specified in its correspondence may not be processed by DFAT.

3.3.6. Once DFAT is satisfied that the Confidentiality Deed Poll has been correctly completed and properly executed, DFAT will email the Tenderer's representative identified in the Deed access to a secure AusTender page to access and download the design and due diligence information.

3.3.7. Tenderers that do not submit a correctly completed and properly executed Confidentiality Deed Poll, will not be provided access to the due diligence or design information in Attachment C. Any Tender submitted without reference to the information in Attachment C may be excluded from participation in the RFT process.

3.3.8. On written notice from DFAT, or upon advice of an unsuccessful Tender outcome, DFAT may request that Tenderers return or destroy all DFAT Confidential Information including the Due Diligence Information, in accordance with the Deed Poll.

3.4. Lodgement Process

3.4.1. Before submitting an electronic Tender, Tenderers must:

- a. ensure their technology platform meets the minimum requirements identified on AusTender;
- b. refer to [AusTender's Help](#) guidance, if required, on uploading tenders;
- c. take all steps to ensure that the Tender is free from anything that might reasonably affect usability or the security or operations of AusTender and/or the Department's computing environment;
- d. ensure that the Tender does not contain macros, script or executable code of any kind unless that specific material has previously been approved in writing by the Department; and
- e. ensure that the Tender complies with all file type, format, naming conventions, size limitations or other requirements set out below or otherwise specified on AusTender.

3.5. Tender File Formats, Naming Conventions and Sizes

- 3.5.1. Tenderers must lodge their tender in accordance with the requirements set out in this clause 3.5 for file format/s, naming conventions and file sizes. Failure to comply with any or all of these requirements may result in the Tender not uploading successfully and/or may eliminate the Tender from consideration.
 - 3.5.2. The Department will accept Tenders lodged that are compatible with Microsoft Windows 7 Enterprise or Microsoft Windows 10 (such as .doc, .docx, .xls, .xlsx or .PDF).
 - 3.5.3. The Tender file name/s:
 - a. should incorporate the Tenderer's company name;
 - b. should incorporate the Project name Kone2
 - c. should reflect the various parts of the Tender they represent, where the Tender comprises multiple files;
 - d. must not contain \ / : * ? " < > | characters; Tenderers must check their files and re-name them if necessary; and
 - e. must not exceed 100 characters including the file extension.
 - 3.5.4. Tender files:
 - a. should be uploaded from a high-level directory on a Tenderer's desktop, so as not to impede the upload process; and
 - b. should be zipped (compressed) together for transmission to AusTender.
 - 3.5.5. If a Tender consists of multiple uploads, due to the number of files or file size, Tenderers must ensure that transmission of all files is completed before the Closing Time.
 - 3.5.6. Tenders must be completely self-contained. No hyperlinked or other material may be incorporated by reference.
- ### **3.6. Late Tenders, Incomplete Tenders and Corrupted Files**
- 3.6.1. Any attempt to lodge a Tender after the Closing Time will not be permitted by AusTender.

- 3.6.2. Late Tenders, incomplete Tenders, including those with electronic files that cannot be read or decrypted, and Tenders which the Department believes to potentially contain any virus, malicious code or anything else that might compromise the integrity or security of AusTender and/or the Department's computing environment, will be excluded from evaluation.

3.7. Proof of Electronic Lodgement

- 3.7.1. When a Tender lodgement has successfully completed, an official receipt is provided on screen. The on-screen receipt will record the time and date the Tender was received by AusTender and will be conclusive evidence of successful lodgement of a Tender. It is essential that Tenderers save and print this receipt as proof of lodgement. A separate email confirming receipt of the Tender will also be automatically dispatched to the email address of the registered user whose details were recorded at login.
- 3.7.2. Failure to receive a receipt means that lodgement has not completed successfully. Where no receipt has been issued by AusTender, the attempted lodgement will be deemed to have been unsuccessful. Tenderers should refer to AusTender for further instruction.

3.8. AusTender Security

- 3.8.1. Tenderers acknowledge that although the Department has implemented the security measures described on AusTender, the Department does not warrant that unauthorised access to information and data transmitted via the Internet will not occur.
- 3.8.2. Tenderers acknowledge that:
- a. lodgement of their Tender on time and in accordance with these conditions of Tender is entirely their responsibility; and
 - b. the Department will not be liable for any loss, damage, costs or expenses incurred by Tenderers or any other person if, for any reason, a Tender or communication relevant to this RFT, is not received on time, is corrupted or altered or otherwise is not received as sent, cannot be read or decrypted, or has its security or integrity compromised.
- 3.8.3. All queries and requests for technical or operational support for AusTender must be directed to:

AusTender Help Desk

Email: tenders@finance.gov.au

- 3.8.4. The AusTender Help Desk is available between 9am and 5pm ACT Local Time, Monday to Friday (excluding ACT and national public holidays).

3.9. Ownership of Tenders

- 3.9.1. All Tenders become the property of the Department upon lodgement. Tenderers submit documents in response to this RFT on the basis that the Department may use, retain and copy the information contained in those documents for the purposes of:
- a. the evaluation and selection of any Tender;
 - b. the preparation and negotiation of any resultant Contract with respect to this RFT; and

- c. verifying the currency, consistency and adequacy of information provided under any other RFT process conducted by the Department.

3.9.2. The Department may disclose the contents of any Tender to its personnel and advisers for the purposes of assisting the Department with this RFT process. The Department may, at its discretion, seek appropriate confidentiality obligations from those personnel or advisers where such disclosure is made.

3.9.3. Nothing in this clause affects the ownership of intellectual property in any Tender.

3.10. Essential Requirements

3.10.1. Tenderers must meet the requirements that are identified as essential (if any) specified in Part 2 of this RFT.

3.10.2. The Department may exclude a Tender from further consideration if at any time before a contract is executed the Department considers that the Tender does not substantively comply with an essential requirement identified in Part 2 of this RFT.

3.11. Conditions for Participation

3.11.1. Subject to clause 3.13.1, any Tender that in the opinion of the Department does not meet a Condition for Participation will be excluded from evaluation.

3.11.2. The Conditions for Participation are at clause **Error! Reference source not found.** of Tender Response Form (TRF) 1.

3.12. Minimum Content and Format Requirements

3.12.1. Subject to clause 3.12.1 & 3.13.1, any Tender that in the opinion of the Department does not substantively meet a Minimum Content and Format Requirements will be excluded from evaluation.

3.12.2. The Minimum Content and Format Requirements are at clause **Error! Reference source not found.** of Tender Response Form (TRF) 1.

3.13. Unintentional Errors of Form

3.13.1. If the Department considers that a Tenderer has made an unintentional error of form in its Tender, the Department may, at its sole discretion, permit the Tenderer to correct that error, but will not permit the Tenderer to submit new or different information that would materially alter the original Tender.

3.14. Ambiguities, Discrepancies, Inconsistencies, Errors or Omissions

3.14.1. The Department will not accept responsibility for any misunderstanding arising from the failure by a Tenderer to comply with the requirements set out in this RFT, or arising from any ambiguity, discrepancy, inconsistency, error or omission contained in a Tender.

3.15. Statement of Tax Record and Tenderer's Deed Poll pre-submission process

3.15.1. A Tenderer may, at its discretion, up to two (2) weeks prior to the Tender Closing Time, submit to the Contact Email:

- a. a copy of their Statement of Tax Record(s) for the Tenderer (TRF1); and
- b. Tenderer's Deed Poll (TRF 8),

to seek a preliminary view by the Department, as to whether their Statement of Tax Record(s) and Tenderer's Deed Poll would, if submitted by the Tenderer in their Tender (and otherwise in accordance with this RFT) meet the Conditions for Participation and Minimum Content and Format Requirement specified in clauses 3.11 and 3.12 of this RFT.

- 3.15.2. The Department may, in its absolute discretion, identify any apparent omissions or errors with the Tenderer's Statement of Tax Record(s) and Tenderer Deed Poll. However, any such review or feedback is indicative only and does not constitute acceptance, confirmation, or waiver of any requirement. If the Department considers that the Tenderer's Statement of Tax Record(s) and Tenderer Deed Poll would not meet the Conditions for Participation and Minimum Content and Format Requirement specified in clauses 3.11 and 3.12. of this RFT, the Department will endeavour to (but does not represent or warrant that it will) notify the Tenderer of this via email from the Contact Email.
- 3.15.3. The Department offers the option in this this clause 3.15 as an opportunity to obtain a preliminary view about the Tenderer's Statement of Tax Record(s) and Tenderer Deed Poll, but submitting a complete and compliant final tender at the Tender Closing Time is ultimately the Tenderer's sole responsibility. This includes rectifying any failure of the Statement of Tax Record(s) and Tenderer Deed Poll to meet the Conditions for Participation and Minimum Content and Format Requirements prior to the RFT Closing Time and the submission of its Tender.
- 3.15.4. Regardless of any view expressed by the Department under the process in this clause 3.15, Tenderers are still required to comply with the Conditions of Participation and Minimum Content and Format Requirement specified in clauses 3.11 and 3.12 of this RFT, which includes submission of the Statement of Tax Record(s) and Tenderer Deed Poll as part of the Tender.
- 3.15.5. The Department accepts no responsibility for any view expressed by the Department about the Tenderer's Statement of Tax Record(s) and Tenderer Deed Poll pursuant to this optional process. The Department is under no obligation to undertake any reviews of an early submissions and will not be liable for any failure to identify deficiencies.

3.16. Joint Tenders

- 3.16.1. The Department will consider a Tender from a consortium or joint venture in the form of a joint Tender.
- 3.16.2. Any joint Tender must set out details of all consortia or joint venture members, including the role that each member would play in the delivery of the Requirements and must nominate a single legal entity which would, if successful, enter into a contract with the Department.
- 3.16.3. Tenderers should note that agreeing to contract as a single legal entity is a mandatory Condition for Participation in this RFT process.

3.17. Part Tenders

- 3.17.1. Tenders offering to provide only part of the Requirements will not be considered by the Department.

3.18. **Alternative Tenders**

- 3.18.1. The Department may consider a Tender that does not fully conform with the Requirements (**Alternative Tender**) if:
- a. the Tenderer also lodges a Tender that conforms with the Requirements; and
 - b. the Alternative Tender:
 - i. is clearly marked as alternative;
 - ii. proposes a solution that satisfies the functionality of the Requirements, including any identified essential requirements;
 - iii. separately identifies in detail the proposed alternative approach and solution;
 - iv. clearly specifies each instance of change (including the effect of the change on the Tenderer price); and
 - v. clearly states the reasons for each instance of change and how the change is more beneficial to the Department than the approach required by the Requirements.
- 3.18.2. Failure to provide the information requested in clause 3.18.1 may result in the Department not considering the Alternative Tender.

3.19. **Additional Material**

- 3.19.1. Tenderers should not provide an executive summary or other additional material such as supporting brochures or promotional material, unless this has been specifically requested in the Scope of Requirement.

3.20. **Conflict of Interest**

- 3.20.1. Tenderers must notify the Department as soon as practicable after becoming aware of an actual or potential conflict of interest, or at any time prior to receiving notification of the award of a contract or the termination of this RFT process.
- 3.20.2. If the Tenderer has or may have an actual or potential conflict of interest, the Department may, at its discretion:
- a. exclude the Tender from further consideration;
 - b. enter into discussions to seek to resolve the conflict of interest; or
 - c. take any other action it considers appropriate.
- 3.20.3. The Department may regard any participant in a consortium who separately Tenders or participates in another consortium tendering in response to the RFT as being a conflict of interest.

3.21. **Notification of Significant Events**

- 3.21.1. For the purposes of this clause, 'Significant Event' means:
- a. any adverse comments or findings made by a court, commission, tribunal or other statutory or professional body regarding the conduct or performance of the Tenderer or its officers, employees, agents or Subcontractors that impacts or could be reasonably perceived to impact on their professional capacity, capability, fitness or reputation; or

- b. any other significant matters, including the commencement of legal, regulatory or disciplinary action involving the Tenderer or its officers, employees, agents or Subcontractors, that may adversely impact on compliance with Commonwealth policy and legislation or the Commonwealth's reputation.

- 3.21.2. Until the Department determines the procurement outcome for this RFT, and during the time up until an agreement is executed by any Successful Tenderer, the Tenderer must immediately issue the Department a Notice on becoming aware of a Significant Event.
- 3.21.3. The Notice issued under clause 3.21.2 must provide a summary of the Significant Event, including the date that it occurred and whether any of its proposed Specified Personnel or other personnel engaged in connection with the Goods and/or Services were involved.
- 3.21.4. The Department may notify the Tenderer in writing that an event is to be considered a Significant Event for the purposes of this clause, and where this occurs the Tenderer must issue a Notice under clause 3.21.2 in relation to the event within three (3) Business Days of being notified by the Department.
- 3.21.5. Where reasonably requested by the Department, the Tenderer must provide the Department with any additional information regarding the Significant Event within three (3) Business Days of the request.
- 3.21.6. A failure by the Tenderer to comply with its obligations under this clause may result in the Department not considering the Tenderer's submission.

3.22. Insurance

- 3.22.1. The Successful Tenderer will be required to hold and maintain insurance arrangements as required in clause **Error! Reference source not found.** of TRF 5 and in accordance with the terms and conditions of the Contract.

3.23. Subcontractors

- 3.23.1. If any aspect of the Requirements will be provided by a subcontractor, the details of all proposed subcontractors and their proposed responsibilities should be set out in the Tender.
- 3.23.2. In accordance with the terms of the Contract the Successful Tenderer will be responsible for the actions of any subcontractors and must include specified provisions of the Contract in any subcontract arrangements.
- 3.23.3. Subcontractors who are approved by the Department to undertake those parts of the contracted Requirements must be identified in any resultant Contract.

3.24. Contractor Personnel

- 3.24.1. Individuals with conflicting commitments, current DFAT personnel and Former DFAT Employees must not be included in the Tender as individuals who will be engaged by the Tenderer if selected as the preferred Tenderer.

3.25. Prices

- 3.25.1. Tendered prices must be inclusive of all costs of complying with this RFT and all costs associated with doing all things necessary for the due and proper completion of the proposed contract and:

- a. be inclusive of goods and services tax (GST), if applicable, and any other taxes and duties, with the GST and other tax and duty components separately identified;
- b. remain unalterable for the Tender Validity Period;
- c. not vary according to the mode of payment; and
- d. take into account the liability, indemnity and other relevant provisions regarding risk in the Contract.

3.25.2. If the tendered pricing is expressed in a currency other than AUD, for the purposes of the evaluation, this will be converted into AUD at the exchange rate determined by the relevant 'foreign currency rate per AUD' published by the Reserve Bank of Australia as at the Closing Time.

3.25.3. Tenderers are required to provide their proposed mechanism for price increases to overseas based services during the term and for any options for contract extension.

3.25.4. Tenderers should seek their own tax advice in relation to this RFT and the Contract.

3.26. Disclaimer

3.26.1. Although certain information is contained in this RFT, Tenderers:

- a. are solely responsible for examining this RFT, any documents referenced in or attached to this RFT and any other information made available by the Department to Tenderers in connection with the RFT process;
- b. must make their own independent assessment and investigations and obtain their own independent advice regarding the subject matter of the RFT; and
- c. are to satisfy themselves that their Tender (including tendered prices) is accurate, complete and not misleading.

3.26.2. Neither the Department, its employees nor its contractors:

- a. makes any representations or warranties as to the accuracy, reliability or completeness of the information in this RFT or any information communicated or provided to Tenderers during the RFT process; nor
- b. has any liability under the law or otherwise arising from the information, the Tender process or any activity associated with them.

3.27. The Department's Rights

3.27.1. Despite any other provision in this RFT, the Department retains the right to:

- a. alter, vary or amend any part of this RFT at any time, including but not limited to the timeframes and dates set out in this RFT;
- b. suspend or terminate this RFT process if the Department determines that none of the Tenders submitted represents value for money or otherwise considers it is in the public interest to do so;
- c. seek information or clarification from any Tenderer, and/or provide information or clarification to any Tenderer;
- d. seek and/or contact any referee, whether or not nominated by the Tenderer;
- e. determine a shortlist of Tenderers at any time after the Closing Time;

- f. add or remove any Tenderer from consideration at any time after the Closing Time;
- g. negotiate or decline to negotiate with any Tenderer, and discontinue negotiations at any time;
- h. allow or not allow another legal entity to take over a Tender in substitution for the original Tenderer, including where an event occurs that has the effect of substantially altering the composition or control of the Tenderer or the business of the Tenderer;
- i. normalise prices in each Tender to facilitate like-for-like assessments;
- j. allow, or refuse to allow, a Successful Tenderer to enter into a contract in the name of a different legal entity to that which submitted the Tender; and
- k. negotiate with more than one Tenderer.
- l. suspend or terminate this RFT process should the Department not receive Government Approval to proceed.

3.28. Tenderer Costs

- 3.28.1. All costs and expenses incurred by a Tenderer in connection with this RFT, including the costs associated with preparing and lodging a Tender, responding to requests from the Department, hosting site visits or attending industry briefings/site inspections, interviews or contract negotiations, are the sole responsibility of the Tenderer. For the avoidance of doubt, the Department will not be, and is not, liable for any lost profit, lost opportunity or other losses of the Tenderer.

3.29. Public Statements

- 3.29.1. Tenderers must not make any public statements or provide any information to the media or any other third party in relation to this RFT or any contract arising out of this RFT, without the prior written approval of the Department.

3.30. False or Misleading Claims

- 3.30.1. If a Tenderer is found to have made false or misleading claims or statements or to have obtained improper assistance connected with the preparation of its Tender or its participation in this RFT process, the Department may remove the Tender from further consideration.
- 3.30.2. Tenderers should also be aware that giving false or misleading information to the Department is an offence under the *Criminal Code Act 1995* (Cth).

3.31. Unlawful Inducements

- 3.31.1. Tenderers, their officers, employees, agents and advisers must not violate any applicable laws or Commonwealth policies in relation to unlawful inducements in connection with the preparation of a Tender or participation in this RFT process.

3.32. Collusive Tendering and Improper Assistance

- 3.32.1. Tenderers, their officers, employees, agents and advisers must not engage in any collusive tendering, anti-competitive conduct or any similar conduct with any other Tenderer or person in relation to the preparation of a Tender or participation in this RFT process.

- 3.32.2. Tenders compiled with the assistance of current DFAT personnel or a Former DFAT Employee will be excluded from consideration.

3.33. Commonwealth Procurement Rules

- 3.33.1. Tenderers should be aware that the *Commonwealth Procurement Rules (CPRs)*, as amended from time to time, apply to this RFT process. The CPRs are available at: <https://www.finance.gov.au/government/procurement/commonwealth-procurement-rules>.

3.34. Disclosure and Confidentiality

Departments Disclosure and Confidentiality

- 3.34.1. Subject to clause 3.34.2, the Department will treat as confidential all Tenders submitted by Tenderers in connection with this RFT.
- 3.34.2. The Department will not be taken to have breached any obligation to keep information provided by Tenderers confidential to the extent that the information:
- is disclosed by the Department to its advisers, officers, employees or subcontractors solely in order to conduct the RFT process or to prepare and manage any resultant contract;
 - is disclosed to Department's internal management personnel, solely to enable effective management or auditing of the RFT process;
 - is disclosed by the Department to the responsible Minister;
 - is disclosed by the Department in response to a request by a House or a Committee of the Parliament of the Commonwealth of Australia;
 - is shared by the Department within the Department's organisation, or with another Commonwealth agency, where this serves the Commonwealth's legitimate interests;
 - is authorised or required by law to be disclosed; or
 - is in the public domain otherwise than due to a breach of the relevant obligations of confidentiality.

Tenderers Disclosure and Confidentiality

- 3.34.3. Tenderers must not, and must ensure that their employees, agents or Subcontractors do not, either directly or indirectly record, divulge or communicate to any person any confidential information concerning the affairs of the Department, the Commonwealth or a third party acquired or obtained in the course of preparing a Tender, or any documents, data or information provided by the Department and which the Department indicates to Tenderers is confidential or which Tenderers know or ought reasonably to know is confidential.
- 3.34.4. The Department may require that all written information (whether confidential or otherwise and without regard to the type of media on which such information was provided to Tenderers) provided to Tenderers (and all copies of such information made by Tenderers) be:
- returned to the Department, in which case Tenderers will be required to promptly return all such information to the address identified by the Department; or

- b. destroyed by Tenderers - in which case Tenderers will be required to promptly destroy all such information and provide the Department with written certification that the information has been destroyed.

3.34.5. The Department may exclude from further consideration any Tender lodged by a Tenderer who has engaged in any behaviour contrary to clauses 3.34.3 or 3.34.4.

3.35. Application of Law and Commonwealth Policy

- 3.35.1. By submitting a Tender, Tenderers acknowledge that they have familiarised themselves with relevant Commonwealth legislation and policies relating to the RFT process including:
- a. Division 70 of the [Criminal Code Act 1995 \(Cth\)](#) which makes it an offence to provide illegitimate benefits for foreign public officials to obtain or retain business;
 - b. Division 137.1 of the [Criminal Code Act 1995 \(Cth\)](#) which makes it an offence to knowingly provide false or misleading information to a Commonwealth Entity;
 - c. the [Freedom of Information Act 1982 \(Cth\)](#) which requires Australian Government departments and agencies to provide access to certain documents in their possession;
 - d. the [Auditor-General Act 1997 \(Cth\)](#) which allows the Auditor-General to conduct a review or examination, at any time, of any aspect of the operations of Australian Government entities;
 - e. the [Ombudsman Act 1976 \(Cth\)](#) which authorises the Ombudsman to investigate the administrative actions of Australian Government departments and agencies and to investigate the actions of certain Australian Government contractors;
 - f. the [Privacy Act 1988 \(Cth\)](#) which aims to ensure that contractors and their subcontractors do not engage in an act or practice that would breach the Australian Privacy Principles if done by the Commonwealth. The Privacy Act also imposes obligations directly on contractors and subcontractors to comply with the Australian Privacy Principles;
 - g. the [Cybercrime Act 2001 \(Cth\)](#) which criminalises certain computer related activities such as hacking, virus propagation and web site vandalism;
 - h. the [Autonomous Sanctions Regulations 2011 \(Cth\)](#). These regulations require anyone who holds assets or funds belonging to a person or organisation designated as a terrorist to freeze immediately those assets or funds. It is an offence to make any assets available to a terrorist. Information about current sanctions regimes and laws is available at: <https://www.dfat.gov.au/international-relations/security/sanctions>;
 - i. the [Work Health and Safety Act 2011 \(Cth\)](#) which requires a person conducting or undertaking a business to ensure the health and safety of all workers and workplaces;
 - j. the [Government Procurement \(Judicial Review\) Act 2018 \(Cth\)](#) which provides a formal complaints mechanism that applies to certain procurements;
 - k. the [Public Interest Disclosure Act 2013 \(Cth\)](#) which aims to promote the integrity and accountability of the Commonwealth public sector;

- l. the [Modern Slavery Act 2018 \(Cth\)](#) which requires certain entities to report on, and address, modern slavery risks in their operations and supply chains;
- m. the [Payment Times Reporting Act 2020 \(Cth\)](#), which aims to improve payment times for Australian small businesses, and the Payment Times Procurement Connected Policy;
- n. the [Charter of United Nations Act 1945 \(Cth\)](#);
- o. the [National Anti-Corruption Commission Act 2022 \(Cth\)](#), which authorises the National Anti-Corruption Commission to investigate serious or systemic corrupt conduct in the Commonwealth public sector, including the conduct of persons who are, or seek to become, contractors to the Commonwealth;
- p. the [Archives Act 1983 \(Cth\)](#) which allows the National Archives of Australia to identify, preserve and make publicly available archives of the Commonwealth and to oversee recordkeeping requirements for Commonwealth records;
- q. the Australian Government Protective Security Policy Framework established by the Department of Home Affairs;
- r. the Shadow Economy Procurement Connected Policy;
- s. the [Anti-Money Laundering and Counter-Terrorism Financing Act 2006 \(Cth\)](#);
- t. the [Crimes Act 1914 \(Cth\)](#);
- u. the [Workplace Gender Equality Act 2012 \(Cth\)](#);
- v. the [Commonwealth Child Safe Framework](#);
- w. the [Disability Discrimination Act 1992 \(Cth\)](#);
- x. the [Fair Work Act 2009 \(Cth\)](#);
- y. the [Racial Discrimination Act 1975 \(Cth\)](#);
- z. the [Sex Discrimination Act 1984 \(Cth\)](#); and
- aa. the [Environment Protection and Biodiversity Conservation Act 1999 \(Cth\)](#); and
- bb. the Commonwealth Supplier Code of Conduct.
- cc. The [DFAT Child Protection Policy 2025](#)
- dd. The [DFAT Protection from Sexual Exploitation, Abuse and Harassment](#)
- ee. The [DFAT Fraud and Corruption Control Framework](#)

- 3.35.2. Notwithstanding any other rights, the Department reserves the right in its absolute discretion to exclude from consideration any Tender:
- a. where any of the Tenderer's personnel have been convicted of, or are being investigated for, a criminal offence; and
 - b. where the Tenderer is on a [World Bank List](#), [DFAT Consolidated List](#), or similar list or becomes the subject of an investigation or temporary suspension which may lead to it becoming so listed.
- 3.35.3. The Department reserves the right to exclude any Tender from a Tenderer which has been convicted of, or is being investigated for, or whose personnel have been convicted of, or are being investigated for, a criminal offence.

- 3.35.4. The Department will not enter into a contract with Tenderers:
- a. that have been named in Parliament as not complying with the *Workplace Gender Equality Act 2012* (Cth);
 - b. who are subject to a judicial decision against them relating to employee entitlements, not including decisions under appeal, and have not paid the claim; or
 - c. who are listed as a designated entity by the Minister for Foreign Affairs by notice in the Gazette under s 15 of the *Charter of the United Nations Act 1945* (Cth) or who intend to engage subcontractors who are listed as a designated entity by the Minister for Foreign Affairs by notice in the Gazette under s 15 of the *Charter of the United Nations Act 1945* (Cth). A consolidated list of such persons, entities and associated assets is maintained by the Department under the *Charter of the United Nations (Dealing with Assets) Regulations 2008* (Cth) and can be found at <https://dfat.gov.au/international-relations/security/sanctions/Pages/consolidated-list.aspx>.

3.36. Indigenous Procurement Policy

- 3.36.1. Is not applicable to this procurement as this procurement is being delivered in Papua New Guinea

3.37. Australian Industry Participation

- 3.37.1. Tenderers should note that the Australian Industry Participation (**AIP**) National Framework principles may apply to this RFT process and a resultant contract (if any). More information on AIP plan requirements can be found at <http://www.industry.gov.au/aip>.
- 3.37.2. The Successful Tenderer must have an approved AIP plan in place before any resultant contract is executed.
- 3.37.3. The Successful Tenderer will be required to have an executive summary of its Approved AIP Plan published at www.industry.gov.au/aip once any resultant contract has been executed.

3.38. Australian Skills Guarantee Targets

- 3.38.1. Tenderers should note that the Australian Skills Guarantee Procurement Connected Policy may apply to this Request for Tender. The Australian Skills Guarantee Procurement Connected Policy aims to address gender segregation and acute skills shortages by introducing the Australian Skills Guarantee Targets. This Request for Tender is for a Major Project for the purposes of the Australian Skills Guarantee Procurement Connected Policy.
- 3.38.2. In accordance with the Australian Skills Guarantee Procurement Connected Policy, the Tenderer should, in its Tender:
- a. identify:
 - i. the total estimated Labour Hours required for completion of the Project;
 - ii. a target specifying the percentage of all Labour Hours to be undertaken by Apprentices;
 - iii. a target specifying the percentage of all Apprentice Hours to be undertaken by Apprentices who are Women;

- iv. how the proposed targets would increase the proportion of Apprentices engaged in the workforce of the Tenderer (including its subcontractors);
 - v. up-to-date workforce data on which the proposed targets are based;
 - vi. an outline of why the targets have been set at the proposed levels; and
- b. include a declaration that it is able to meet the proposed targets as set out in its Tender, in the delivery of any resultant contract for this procurement.

3.39. **Workplace Gender Equality**

- 3.39.1. Commonwealth policy prevents the Department from entering into contracts with Tenderers who are non-compliant under the *Workplace Gender Equality Act 2012* (Cth) (the **WGE Act**). In performing any contract, the Successful Tenderer will be required to:
- a. comply with its obligations, if any, under the WGE Act; and
 - b. provide a current letter of compliance within 18 months from the commencement date of the Contract and following this, annually to the Department.
- 3.39.2. Tenderers should note that, if they are the Successful Tenderer, and during the term of the contract they become non-compliant with the WGE Act, they must notify the Department. For further information about coverage of the WGE Act, contact the Workplace Gender Equality Agency on (02) 9432 7000.

3.40. **Modern Slavery**

- 3.40.1. Under the *Modern Slavery Act 2018* (Cth), the Australian Government is required to report annually on modern slavery risks across whole-of government procurement and investments. The Australian Government is committed to ensuring its supply chains are not linked to modern slavery and address and mitigate risks that are identified.
- 3.40.2. In performing the Contract, the Successful Tenderer may be required to comply with one of the modern slavery model contract clause options available at <https://modernslaveryregister.gov.au/resources/> which may require the Tenderer to:
- a. take reasonable steps to identify, assess and address risks of Modern Slavery practices in the operations and supply chains used in the provision of the Goods and/or Services; and
 - b. ensure the Tenderer's personnel responsible for managing the operations and supply chains used in the performance of the Contract have undertaken suitable training to be able to identify and report on Modern Slavery.

3.41. **Supplier Code of Conduct**

- 3.41.1. The Department expects its suppliers to conduct themselves with high standards of ethics such that they consistently act with integrity and accountability. To this end, the Supplier Code of Conduct outlines the Commonwealth's minimum expectations of its suppliers and their subcontractors while under contract with the Commonwealth.
- 3.41.2. The Supplier Code of Conduct can be found at: <https://www.finance.gov.au/government/procurement/commonwealth-supplier-code-conduct-overview>.

- 3.41.3. Without limiting the requirements in clause 3.41.1, Tenderers must ensure they comply with the Supplier Code of Conduct if they are selected by the Department as a Successful Tenderer.

3.42. Work Health and Safety

- 3.42.1. In any resultant Contract, the Tenderer will be required to comply with:
- a. all relevant legislation, codes of practice and national standards relating to work health and safety, including in relation to consultation, representation and participation; and
 - b. all applicable policies and procedures relating to work health and safety.
- 3.42.2. Tenderers must demonstrate their company's work health and safety system in place at Tender Response Form (TRF) 7.

3.43. Questions

- 3.43.1. The Department will respond to all questions directed to the Contact Email in writing, before the Closing Time.
- 3.43.2. If the Department considers that a Tenderer's question may be relevant to other Tenderers, it will publish its response to all Tenderers on a non-attributable basis in the form of an addendum by notice on the AusTender website. Tenderers should identify in their question what, if any, information in the question the Tenderers consider is confidential. Inappropriate identification of information as confidential will be considered by the Department when determining what, if any, response will be given.
- 3.43.3. If a Tenderer believes it has found a discrepancy, error, ambiguity, inconsistency or omission in this RFT or any other information given or made available by the Department, the Tenderer should promptly notify the Department setting out the error in sufficient detail so that the Department may take the corrective action, if any, it considers appropriate.

3.44. Complaints

- 3.44.1. Any complaints arising out of the RFT process should be directed in the first instance to the Contact Email.

4. EVALUATION OF TENDERS

4.1. Overview

- 4.1.1. The Department will evaluate Tenders in order to identify the Tenderer which it considers can provide the Requirements in a manner that achieves best value for money for the Department.
- 4.1.2. Value for money is a comprehensive assessment that takes into account the value represented by the technical assessment in the context of the risk profile presented by the Tenderer and its Tender, including compliance with the draft Contract and the cost represented by the price assessment.
- 4.1.3. Tenderers should address each of the criteria below in the relevant TRF. Tenderers' responses in the TRFs will form the basis of the evaluation.
- 4.1.4. The Department is not bound to accept the lowest priced or any Tender.
- 4.1.5. In conducting the evaluation, the Department may take into account information provided by a Tenderer in response to one evaluation criterion in its evaluation of another evaluation criterion.

4.2. Evaluation Criteria

- 4.2.1. Tenders who reach Step 2 of the evaluation process will be assessed against the evaluation criteria detailed in clause 4.2.2.
- 4.2.2. Evaluation Criterion

Evaluation Criteria		Weighting
Technical Criteria		
A	Delivery Methodology (TRF 9)	45%
	Scope and Design Appreciation a) Understanding of the nature and scope of the Contractor's Activities and the Works. b) Understanding and appreciation of the project background. c) Task Appreciation and Proposed Proven Methodology d) Understanding of the key concerns and constraints. e) Other information as deemed appropriate by the Tenderer. Approach to Due Diligence f) Provide specific approach to the proactive preparation, submission, review and development of design documentation and all other design tasks and activities. g) Ability to undertake a design Due diligence process with concurrent demolition activities across a rolling staged program of works. Onsite Construction and Site Management h) How will the works be executed on Site in accordance with the RFT documentation? i) Risk Management and Quality Assurance	

	j) What is the proposed approach to assess, manage, monitor and mitigate risks, issues and Quality Management? k) How will the contractor work and operate within a live environment within the compound which has 80 young children living within it. l) How will the contractor manage the security and site access requirements. m) How will your team approach Program management, including tracking against program, onsite trade direction and onsite works monitoring and delivery/logistic management. n) How will the contractor achieve the required standard of high quality finishes Furniture, Fixtures and Equipment (FF&E) o) What is the proposed approach to supply, install and commission of materials. Commissioning, Training and Handover Activities p) What is the proposed approach to the staged Defects Liability Period activities?	
B	Project Program (TRF 9)	25%
	The Tenderer is to attach a detailed Due diligence and Construction Program of works for the project. Each line item in the program is not to be more than 1 week long. The program is to be detailed enough so daily progress can be monitored. The program shall be in a bar chart presentation form with all logic links and clearly indicating the critical path. It is anticipated that this program will demonstrate that the Tenderer has an understanding of the constraints on construction, lead times and procurement activities. The program is to comply with the milestones date layout within the RTF under 5.5.1. Details expected to be included are: a) How will your team a will manage the staging and handover timeframes and find efficiencies as the project progresses. b) How will your team manage long procurement items c) Site establishment and demolition are to start onsite whilst the due diligence is being completed.	
C	Capability and Capacity (TRF 9)	20%
	Capability a) Organisation Chart – a strategic organisation chart detailing the structure and key personnel proposed to be used in delivery of the services as specified in the Scope of Requirement. b) Experience – Demonstrate your organisation's experience in the delivery of services of similar size, scale and scope to those specified in the Statement of Requirements. Include details of two (2) referees, that can corroborate the experience articulated in your response: Tenderer Details.	

	c) Networks – Articulate the nature, footprint, structure and operations of your network. Demonstrate how your network is able to consistently ensure quality service delivery. Capacity a) Quality - demonstrate your organisation's capacity with its existing work commitments to provide quality services that meets DFAT's requirements.	
D	Resourcing (TRF 9)	10%
	The Tenderer must specify their proposed Specified Personnel including, but not limited to, its proposed Contract Manager, Escalation Representative, and Contract Account Manager, Onsite site foreman/Project manager. The Tenderer is expected to provide the following details: a) Position description. b) Curriculum Vitae containing appropriate qualifications and experience. c) Contact details of two referees for each proposed Specified Personnel.	
Unweighted Evaluation Criterion		
Item	Evaluation Criterion	Required Information
1	Price- the extent to which the Tender's offered price provides value for money	Tenderers must complete the Price Schedule at TRF 11.
2	Tenderer's Financial viability	Tenderers must complete the Financial Viability Questionnaire at TRF 5.
3	Tenderer's compliance with the draft Contract	Tenderers should indicate their compliance with the Draft Contract by completing TRF 6.
4	Economic Benefit to the Australian Economy	Tenderers should complete TRF 10.
5	Modern Slavery	Tenderers should outline their policies and practices to identify, assess and mitigate modern slavery risks in their supply chains and operations by completing TRF 12.
6	Sustainable Procurement	Tenderers should provide details of the environmental sustainability of the proposed goods and services by completing TRF 13.

4.3. Security, Probity and Financial Checks

- 4.3.1. The Department may perform such security, probity and financial investigations and procedures as it may determine are necessary in relation to Tenderers, their employees, officers, partners, associates, subcontractors or related entities and their officers, employees and subcontractors.
- 4.3.2. Tenderers will be expected to provide reasonable assistance to the Department regarding such checks, including supplying further information as requested.

4.3.3. Any omission or failure to provide detailed information will diminish the scoring ability of the submission and may result in the Department removing the Tender from further consideration.

4.3.4. Tenders will be assessed in accordance with the following evaluation process.

4.4. Step 1 – Screening

4.4.1. Tenderers will be assessed to ensure they comply with the mandatory Minimum Content and Format Requirements, the mandatory Conditions for Participation and the essential requirements.

4.4.2. Subject to clause 3.13, any failure by a Tenderer to meet these requirements will result in that Tender being excluded from further evaluation. Relevant Tenderers will NOT be notified that its tender was not compliant and will not proceed further in the evaluation process.

4.5. Step 2 – Technical Requirements

4.5.1. Tenders that are not excluded from further evaluation at Step 1 will be assessed against the technical criteria as required by Tender Evaluation Criteria Response Form (TRF) 9 Response to Technical Requirements.

4.5.2. Tenders should provide enough detail against each technical Criterion to ensure that the Department has a clear understanding of the business solution being offered and that the complete Requirements have been addressed.

4.5.3. Unclear or contradictory statements will result in a low scoring assessment against those criteria.

4.5.4. Presentations and/or site visits may be requested/conducted if required. The Department has the discretion during the evaluation of Tenders to hold discussions and site visits with any or all Tenderers, including any proposed sub-contractors of a Tenderer, in order to seek further clarification of their Tender.

4.5.5. If at the conclusion of the technical assessment, the Department determines a shortlist of Tenders, only those Tenders that have been shortlisted will proceed to the next step of the evaluation.

4.6. Step 3 – Cost Evaluation

4.6.1. Tenders that have been shortlisted following Step 2 will be assessed on the pricing details provided in the Tender Response Form (TRF) 11: Pricing Schedule.

4.6.2. The Department reserves the right to seek clarification on any pricing matters and to seek a best and final offer in respect of pricing from each Tenderer that reaches Step 3, if it is deemed necessary, to determine a clear value for money outcome for the Department.

4.7. Step 4 – Assessment of Unweighted Evaluation Criteria

4.7.1. Economic Benefit to the Australian Economy Assessment (if applicable)

- a. The Department will undertake an assessment of each Tenderer's response addressing Economic Benefit to the Australian Economy Tender Response Form (TRF) 10.

4.7.2. Financial Viability

- a. The Tenderers that are shortlisted will be assessed on their financial Viability. The Department will take into consideration:
 - i. The Department will undertake an assessment of each of the Tenderer's responses addressing the Financial Viability Tender Response Form (TRF4) using the principals outlined by the Department of Finances guidance. [Assessing Financial Viability | Department of Finance](#). And may seek a third party assessment be undertaken to provide an additional assessment.
 - ii. If there are any disclosures that could affect/impact the successful delivery of the contract.

4.7.3. Compliance with Draft Contract Criterion

- a. The Department will undertake an assessment of each Tenderer's response addressing Compliance with Draft Contract Tender Response Form (TRF) 6.

4.7.4. Modern Slavery

- a. The Department will undertake an assessment of each Tenderer's response addressing Modern Slavery Tender Response Form (TRF) 12.

4.7.5. Sustainable Procurement

- a. The Department will undertake an assessment of each Tenderer's response addressing Sustainable Procurement Tender Response Form (TRF) 13.

4.7.6. Australian Skills Guarantee Targets (if applicable)

- a. In evaluating Tenders, the Department will take into consideration:
 - i. the Tenderer's past performance and reporting in accordance with the Australian Skills Guarantee Procurement Connected Policy (if any);
 - ii. the extent to which the Tenderer demonstrates its proposed targets would increase the proportion of Apprentices and ICT Cadets engaged in the workforce of the Tenderer (including its subcontractors).

Note to Tenderers: A Tenderer that has no past experience with any Australian Skills Guarantee Targets will not be disadvantaged by this alone.

4.8. Step 5 – Value for Money

- 4.8.1. The Department will determine best value for money by undertaking a comparative analysis of the relevant financial and non-financial costs and benefits of the Tenders, including an assessment of risk.
- 4.8.2. In determining value for money, the Department will evaluate Tenders against the evaluation criteria and consider:
 - a. the assessment scores through the technical assessment;
 - b. the results of referee checks, site visits or presentations (if conducted);
 - c. any risks to the Department posed by the Tender, including the degree of compliance with the draft Contract, financial viability of the Tenderer, any identified WHS risks, and any identified legislative compliance issues (such as compliance with the National Construction Code to the extent applicable);

- d. the overall whole of life costs;
- e. the benefit to the Australian economy;
- f. the outcomes of any other assessed criteria; and
- g. any other matter that the Department considers relevant.

4.9. Steps 6 and 7 – Preferred Tenderer and contract negotiations

- 4.9.1. Following Step 5, the Department will notify the Tenderer who is determined to represent the best value for money (the **Preferred Tenderer**). The Department will enter into contract negotiations with the Preferred Tenderer. The Department reserves the right to enter into parallel negotiations with multiple preferred Tenderers.
- 4.9.2. If the Department forms the view that negotiations are unlikely to achieve agreement on terms acceptable to the Department, the Department may approach the next ranked Tenderer to commence negotiations, such Tenderer will then become the Preferred Tenderer.

4.10. Referee Checks

- 4.10.1. Tenderers must ensure that nominated referees:
 - a. do not have an actual or potential conflict of interest. In particular, referees must not:
 - i. be an employee or holder of a current executive office within the Tenderer organisation or have a business association with the Tenderer or one of its subsidiaries;
 - ii. be included in the Tender as proposed personnel; or
 - iii. be a Former DFAT Employee; and
 - b. in the case of current DFAT personnel, including current DFAT employees, are not involved with the RFT process; and
 - c. are available to be contacted within 3 weeks of Closing Time.
- 4.10.2. The Department may, at its discretion, contact any referee nominated by a Tenderer in its Tender, and may seek written or verbal comments from that referee.
- 4.10.3. The Department may also seek information about any Tenderer from any other source, including from within the Commonwealth, whether or not the individuals or organisations contacted are nominated by the Tenderer.

4.11. Tender Clarification

- 4.11.1. At any stage the Department may ask a Tenderer to clarify or provide additional information on any aspect of its Tender.
- 4.11.2. Failure to respond to a request for clarification in the manner requested by the Department may have an adverse impact on the evaluation of the Tender.

4.12. Publication of Contract Award

- 4.12.1. In accordance with the Senate Order on Entity Contracts, the Department is required to list the contracts with a consideration of \$100,000 or more that it entered into during the previous 12 months, or that have not been fully performed, on the Internet

with access via the Department's home page. Further information regarding these requirements is specified in *Resource Management Guide No. 403 - Meeting the Senate Order for Entity Contracts*.

- 4.12.2. The Department is also required to publish details of contracts it enters into with an estimated liability of \$10,000 or more on AusTender within 42 days of entering into the contract. Further information about this requirement can be found at <https://www.finance.gov.au/publications/resource-management-guides/procurement-publishing-reporting-obligations-rmg-423>.

4.13. Debriefing

- 4.13.1. Following the rejection of a tender, or the award of a Contract, Tenderers will be informed in writing of the outcome of their tender.
- 4.13.2. Tenderers may, in writing, request a debrief concerning their tender, following the award of a Contract.
- 4.13.3. Tenderers will be debriefed against the evaluation criteria set out in this RFT. A Tenderer will not be provided with information concerning other Tenders. No comparisons with other Tenders will be made.